



Mutual Non-Disclosure Agreement

This Mutual Non-Disclosure Agreement ("Agreement") is entered into between Vandervan Systems ("Vandervan") and the other party identified below ("Recipient"), for the purpose of discussing a potential business relationship (the "Purpose"). Both parties may disclose confidential information to each other during this discussion, and this Agreement protects both sides equally.

1. Confidential Information

"Confidential Information" means any non-public business, technical, financial, or personal information disclosed by either party, whether in writing, verbally, or by any other means, that a reasonable person would understand to be confidential given the nature of the information and the circumstances of disclosure.

2. Obligations

- Each party agrees to keep the other's Confidential Information private and to use it only for the Purpose.
- Each party agrees not to disclose the other's Confidential Information to any third party without prior written consent, except to employees or subcontractors who need it for the Purpose and are bound by confidentiality obligations at least as protective as this Agreement.
- Each party agrees to protect the other's Confidential Information using at least the same care it uses to protect its own confidential information, and no less than reasonable care.

3. Exclusions

Confidential Information does not include information that: was already known to the receiving party without an obligation of confidentiality; is or becomes publicly available through no fault of the receiving party; is independently developed without reference to the disclosing party's Confidential Information; or is rightfully received from a third party without a duty of confidentiality.

4. No License or Obligation

Nothing in this Agreement obligates either party to proceed with any business relationship, transaction, or project. Nothing in this Agreement grants either party any license or ownership right in the other's Confidential Information, intellectual property, or ideas.

5. Term

This Agreement applies to Confidential Information disclosed during the 12 months following the effective date below. The confidentiality obligations in this Agreement survive for 2 years from the date of disclosure of the relevant information.

6. Return or Destruction

Upon request, each party will return or destroy the other's Confidential Information, except for copies retained as required by law or standard backup procedures, which remain subject to this Agreement.

7. Governing Law

This Agreement is governed by the laws of the Province of British Columbia and the federal laws of Canada applicable therein.

8. Entire Agreement

This Agreement is the entire understanding between the parties regarding confidentiality of information exchanged for the Purpose, and supersedes any prior discussions on this topic. It may only be amended in writing signed by both parties.

Effective Date: _____

Recipient Name / Organization: _____

Recipient Signature: _____ Date: _____

Vandervan Systems Signature: _____ Date: _____